

HOUSE BILL No. 1034

DIGEST OF INTRODUCED BILL

Citations Affected: IC 20-26-5-40.7.

Synopsis: Student cellular telephone use. Amends the definition of "wireless communication device." Requires each school corporation and charter school to adopt and implement a wireless communication device policy that: (1) prohibits a student from using or possessing a wireless communication device during the school day; (2) requires teacher directed use of a wireless communication device for educational purposes during the school day to occur only on school supplied wireless communication devices; and (3) mandates the use of a no device policy or a secure storage policy. Creates certain exceptions to a wireless communication device policy. Requires the department of education to publish model policy language and implementation guidance.

Effective: July 1, 2026.

Teshka, McGuire

December 1, 2025, read first time and referred to Committee on Education.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1034

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 20-26-5-40.7, AS ADDED BY P.L.24-2024,
2 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 40.7. (a) As used in this section, ~~"instructional~~
4 ~~time"~~ **has the meaning set forth in IC 20-30-2-1: "school day" means**
5 **the entirety of the time a student is present on school property for**
6 **a student instructional day (as defined in IC 20-30-2-2).**

7 (b) As used in this section, "wireless communication device" means
8 any portable wireless device that has the capability to provide voice,
9 messaging, or other data communication between two (2) or more
10 parties, including a:

- 11 (1) cellular telephone;
12 (2) tablet computer;
13 (3) laptop computer; ~~or~~
14 (4) gaming device; **or**
15 **(5) smartwatch that is connected to a cellular telephone, a cell**
16 **tower, or the Internet.**

17 (c) **Except as provided in subsection (d),** each school corporation



1 and charter school shall adopt and implement a wireless
2 communication device policy that:

3 (1) except as provided in ~~subdivisions (2) and (3) and subsection~~
4 ~~(4)~~, **subdivision (2)**, prohibits a student from using **or possessing**
5 a wireless communication device during ~~instructional time~~; **the**
6 **school day**;

7 (2) ~~authorizes a teacher to allow a student to use a wireless~~
8 ~~communication device for educational purposes during~~
9 ~~instructional time~~; and

10 (3) ~~permits a student to use a wireless communication device in~~
11 ~~the event of an emergency or to manage the student's health care~~.
12 **(2) requires teacher directed use of a wireless communication**
13 **device for educational purposes during the school day to**
14 **occur only on school supplied wireless communication**
15 **devices; and**

16 **(3) mandates one (1) of the following policies:**

17 **(A) A no device policy under which students are not**
18 **permitted to bring wireless communication devices to**
19 **school.**

20 **(B) A secure storage policy under which wireless**
21 **communication devices may be brought to school, but must**
22 **be:**

23 **(i) stored and inaccessible throughout the school day;**
24 **and**

25 **(ii) returned to the student upon dismissal at the end of**
26 **the school day.**

27 (d) The policy adopted and implemented under subsection (c) may
28 not prohibit a student from using a wireless communication device
29 during ~~instructional time~~ **the school day** if the use of the wireless
30 communication device is: ~~included in the student's~~

31 **(1) included in the student's** individualized education program;

32 ~~or~~

33 **(2) included in the student's** plan developed under Section 504
34 of the federal Rehabilitation Act of 1973, 29 U.S.C. 794;

35 **(3) necessary for the management of a documented medical**
36 **condition pursuant to a physician's directive;**

37 **(4) authorized by the superintendent, or the superintendent's**
38 **designee, during an emergency; or**

39 **(5) necessary for language translation to ensure access for**
40 **multi-lingual learners, prioritizing school-managed wireless**
41 **communication devices or applications where available.**

42 (e) Each school corporation and charter school shall publish on its



1 website the wireless communication device policy established under
2 subsection (c).

3 **(f) The department shall publish model policy language and**
4 **implementation guidance consistent with this section.**

